

Plaintiffs, however, do have actual proof of when defendants did receive such knowledge. They point out that the court proceedings in Hawaii and Arizona for enforcement of the judgment were *actually served* on defendants at the Haiku address in March 2024. Those papers included a copy of the California judgment.

And they also provide an e-mail from defendant Cunningham personally, dated April 2025, in which he assured potential lenders on a pending transaction that the liens from this judgment would be removed. That proves that Cunningham had actual, personal knowledge that the liens – and the judgment – existed.

So where were defendants in the meantime? Even indulging their implicit but unstated assertion of actual ignorance before 2024, it is proved by undisputed documents that they waited nearly a year and a half, after receiving copies of this judgment, before they filed this motion. And they likewise waited some four months after themselves acknowledging the judgment's existence in their own communications. Under no possible stretch could either of those delays be deemed reasonable diligence.

19. 9:00 AM CASE NUMBER: MSC21-01751
CASE NAME: JOSE BELTRAN VS. MONUMENT CONSTRUCTION INC
HEARING IN RE: COMPLIANCE HEARING SET BY THE COURTROOM CONTINUED FROM 11.19.2025
FILED BY:
TENTATIVE RULING:

The final report as to disbursements is **approved**. The administrator may transmit any remaining funds to the Unclaimed Property Fund at the appropriate time, estimated as May 2027. If any late-appearing claimants present themselves in the meantime, however, their proceeds may be disbursed to them. No further hearings are required, but a final report documenting the disposition of all funds should be filed with the Court in due course.